

DD Form 2345

MILITARILY CRITICAL TECHNICAL DATA AGREEMENT

(Specific Instructions for filling out form)

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Certification is needed if you wish to actively pursue other and/or future prospects:

1. Through DIBBS
2. FedBizOpps, etc.

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Certification is often mandated to attend:

1. Bid conferences
2. Participate in meetings
3. Obtain Request for Proposal (RFP) details
4. To proceed on Directly Arranged Visits (DAV)

FAILURE to provide accurate and complete information will result in
your Application being **returned or rejected**.

NOTE: If you are a U.S. Entity, do not submit a DD Form 2345 unless Entity has a **Valid DUNS** number, is currently registered in the **System for Award Management System (SAM)**, and has an **Active CAGE/NCAGE**.
(Refer to the links in Block 2d for assistance with these agencies.)

BLOCK 1 - TYPE OF SUBMISSION (CHECK ONLY ONE BOX)

• **INITIAL SUBMISSION:**

Check if this is the **first time** request for certification under the JCP.

• **REVISION:**

Check if you are **revising** any information on an active previously approved application, to show **revised information**, such as:

- | | |
|--|---|
| - Name of the Entity (Block 2a) | - Address (Block 2b) |
| - CAGE/NCAGE Code (Block 2d) | - Data Custodian (Block 3a) |
| - Phone (Block 3b) | - Data Custodian Email (Block 3d) |
| - Relevant Business Activity (Block 4) | - Contractor Certification (Blocks 6a-6d) |
| - <u>Any changes to your entity's status or data during the certification period, you must notify the JCP Office, by submitting a REVISION to your DD Form 2345, along with supporting documentation.</u> | |

• **5-YEAR RENEWAL:**

Check this box **only if** the company's 5-year certification **is going to expire or has expired**.

- Renewal requests may be submitted up to **120 days** prior to certification expiration.

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BLOCK 2 – ENTITY OR INDIVIDUAL DATA

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- **Block 2a [NAME] (MANDATORY)**

This must exactly match as recorded in the CAGE/NCAGE database, and on the supporting documentation you will be providing with your completed form.

CAGE verification Link (for U.S. companies): may be done at:

<https://cage.dla.mil>

and

NCAGE verification Link (for Canadian entities) may be done at:

<https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx>

- **For Entities:** enter the full legal business name or institution name.
- **For an Individual:** enter your full name as it appears on your documentation.

- **Block 2b [ADDRESS] (MANDATORY)**

- Enter the physical mailing address and ZIP Code of the entity or individual applying for the certification in Block 2d.

- The address must exactly match your entity's address:

- As recorded in **CAGE/NCAGE** database (See links above).

- If a P.O. Box is used (for mailing purposes), enter the mailing address separately, in Block 2b.

- Submit only one DD Form 2345 per CAGE CODE physical address.

- **Block 2c.** Leave blank **(UNLESS):**

You are a **university, college or higher learning institution** applying for certification.

You must enter "Office of Research and Grants" or the name of the office that is its equivalent.

- **Block 2d. [CAGE CODE] (MANDATORY)**

- Enter your entity's CAGE / NCAGE Code as recorded in the CAGE/NCAGE database for your location. CAGE website: <https://cage.dla.mil/search>
- The JCP Certification covers all employees working under that CAGE Code at that location

- **DUNS Link:**

<https://www.dandb.com/product/companyupdate/companyupdateLogin?execution=e1s1>

- **SAM Link:**

U.S. Entity's must be registered in **System for Award Management (SAM)** prior to submitting a DD Form 2345.

For information on **SAM**, visit: <https://www.sam.gov>

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BLOCK 3 – DATA CUSTODIAN

Entities or individuals applying for certification *must designate a single person by name* to act *as the Data Custodian* for the facility.

- There can be **only one Data Custodian per location per CAGE Code.**
- This person will be responsible for receiving and disseminating any technical data transferred to the certified contractor under the provisions of the JCP.
- **Block 3a [NAME] (MANDATORY)**
- **Block 3b [TELEPHONE NUMBER] (MANDATORY)**
 - Business landline, telephone number (including area code) of the entity
- **Block 3c [TITLE] (MANDATORY)**
 - **Title of the individual**
- **Block 3d [EMAIL] (MANDATORY)**
 - The email address of the individual in Block 3a where the Data Custodian will receive DOD unclassified controlled technical data and will be responsible for its further dissemination.

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NOTE: This is the most CRITICAL part of your request.

Provide a concise and detailed description of Entity's (listed in Block 2a) Business Activity. This will assist the Canadian or U.S. Government agency controlling the data in determining whether the DOD unclassified controlled technical data that you might request is reasonably related to your stated business activity.

Specifically address the following 4 areas:

1. **DESCRIBE the PRODUCT(S) or SERVICE(S) your company MANUFACTURES, SELLS or PROVIDES.** It could be relevant to multiple product lines but specific to applications or technologies.

EXAMPLES:

- We design and construct high-pressure, high volume hydraulic pumps to military engineered specifications for use in connection with aircraft control surfaces.
- Our company is developing a communications planning tool with interfaces to radio devices, using simulation and training software, and integrating with military command and control systems.
- We provide engineering services to a manufacturer of military vehicle suspension systems and related components.
- Our company is a commercial and industrial painting and sandblasting entity that provides offsite sandblasting and coating services for structural components.

2. **State WHY you require certification.**

If applicable, provide references to existing contracts or links to on-going work with the U.S or Canadian Government.

EXAMPLES:

- We currently have contracts with DLA which require an active JCP Certification to continue production.
- Our company has been invited by (name of DOD component/installation/Program) to brief, demonstrate and evaluate our latest soldier system prototype equipment.
- We need to obtain specific technical manuals and drawings for high-pressure air flasks used on USN support ships.
- We are interested in bidding a project at Naval Base Bangor.

3. **HOW you intend to utilize DOD unclassified controlled technical data.**

EXAMPLES:

- Export controlled technical data packages will be used to prepare a bid submission for the "MRAP Fighting Vehicle".
- As a sub-contractor to (Name of prime contractor) and need to see the specifications in order to bid and will not share export controlled technical data with non JCP certified defense contractors
- We require export controlled technical data to perform research and design in order to design a new prototype for the "Advanced Fighting Vehicle".
- We require access to export controlled technical data packages and photos for solicitation # XXXXX to prepare our bid.

4. **If available, provide:**

The name, office and contact information of the person requiring this certification.

EXAMPLES:

- Contracting Officer, Jane Doe, DLA, phone, email.
- Acme Aviation, the prime contractor, Mr./Ms. John/Jane Doe, phone, email.
- The DOD agency or office requiring the certification.

NOTE:

Proprietary, Personal or other Entity Sensitive information shall **NOT BE INCLUDED** in this statement.

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BLOCK 5 – CONTRACTOR CITIZENSHIP/RESIDENCY STATUS:

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AS A CONDITION OF RECEIVING DEPARTMENT OF NATIONAL DEFENSE (DND) OR DEPARTMENT OF DEFENSE (DOD) UNCLASSIFIED CONTROLLED TECHNICAL DATA, THE ENTITY CERTIFIES THAT:

- **Block 5a - (MANDATORY) MARK EITHER:**

- (1) **UNITED STATES**

- Or**

- (2) **CANADA**

- The individual named in Block 3a, may be either a Canadian or a U.S. citizen or a person admitted lawfully for permanent residence into Canada.

- If the location of the entity is in the U.S., the individual named in Block 3 must be a U.S. citizen or a person admitted lawfully for permanent residence if the facility is located in the U.S.

- **Block 5b**

- The contractor agrees to use the data only in ways mandated by DoD Directive 5230.25 or the Technical Data Control Regulations (TDCR). The contractor must certify that it needs the technical data to bid on or perform a contract with an agency of the U.S. or Canadian Government or for other legitimate business purposes.

- **Block 5c**

- They acknowledge their responsibility under all applicable export control laws and regulations both in Canada and in the U.S. and will not violate said laws or regulations. If a contractor violates the provisions of the agreement, the contractor's eligibility for access to DOD unclassified controlled technical data could be revoked. If a contractor exports the technical data without the benefit of license or other authorization, it may be in violation of export control laws and subject to severe criminal penalties. A contractor violating the provisions of the agreement may be subject to prosecution by the contracting authority.

- **Block 5d**

- Access to DOD unclassified controlled technical data will only be provided to their employees or eligible persons. The contractor must agree not to publicly disclose any unclassified technical data it receives under the agreement, unless specifically authorized by the controlling office, and to limit access to the data to individuals employed at its facility that meeting the following citizenship requirements:

- **Block 5e**

- They must ensure that no employees or eligible persons with access to the DOD unclassified controlled technical data have been debarred, suspended or are otherwise ineligible to perform on Canadian or U.S. government contracts or have violated Canadian or U.S. export control laws and regulations.

- **Block 5f**

- They are also certifying that their organization is not presently or has not in the past, been debarred, suspended or otherwise ineligible from performing on Canadian or U.S. Government contracts or that they have not violated or contravened any Canadian or U.S. export control laws or regulations.

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BLOCK 6 – CONTRACTOR CERTIFICATION:

- **Block 6a - (TYPED NAME) (MANDATORY)**

Type or print the individual's name who can legally obligate the enterprise to a contract,

- **Block 6b (TITLE) (MANDATORY)**

Type or print the individual's title identified in Block 6a.

[For Universities](#) - this title must clearly show this individual's relationship to the [Office of Research and Grants](#), or equivalent organization on campus.

- **Block 6c (SIGNATURE) (MANDATORY)**

- The legal handwritten signature of the individual indicated in Block 6a, who can legally obligate the enterprise to a contract must sign.

- Stamped or Digital signatures are currently NOT acceptable.

- This individual is legally bound to abide by all terms and conditions listed in Blocks 5a-5f.

- **Block 6d (DATE) (MANDATORY)**

- Type or print the date the form was signed.

BLOCK 7 - CERTIFICATION ACTION:

- **Block 7a - For Joint Certification Program Office (JCO) use only.**
- **Block 7b - For Joint Certification Program Office (JCO) use only.**
- **Block 7c - For Joint Certification Program Office (JCO) use only.**

BLOCK 8 - DOD OFFICIAL

For Joint Certification Program Office (JCO) use only.

BLOCK 9 - CANADIAN OFFICIAL

For Joint Certification Program Office (JCO) use only.

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SUPPORTING DOCUMENTATION

Supporting documentation proving the legitimacy of the company was not provided.

You will need to provide documentation proving the company is a registered business entity with a government agency. The supporting documentation must be issued by a government agency. The JCP cannot accept **W-9 Forms**. **Caution** - do not send anything which contains personal information, such as a social security, passport or bank account number, etc. The company name must be on the documentation as well as the name of the issuing **state/province**, county, or city.

Examples would include one of the following:

- Sales tax license
- Business license
- Filed articles of incorporation (with date stamp or incl. a letter noting the articles are on file at the **state**)

Once you have the appropriate supporting business document(s) you may EMAIL A NEW, CORRECTED DD 2345, WITH AN ORIGINAL SIGNATURE AND the CURRENT DATE, to: JCP-ADMIN@DLA.MIL.

ITAR/EAR Related Documentation Requested

In accordance with 22 CFR §120-130, International Traffic in Arms Regulations, technical data available under the Joint Certification Program (JCP) may qualify as export controlled.

Under 22 CFR § 121.1, [United States Munition List](#), some businesses who manufacture or export defense articles or services, which may include associated technical data, are required to register with the Directorate of Defense Trade Controls (DDTC).

Accordingly,

- If you currently possess a DDTC registration letter or an export license, we request that you provide this letter or license number as part of the supporting documentation for your JCP certification request.
- If you do not have or require a DDTC registration letter or export license, we request that you annotate this in Block 4 of the DD Form 2345.

Disclosure of DDTC Registrant status is [voluntary](#) and it is not required in order for you to obtain a JCP certification.

However, providing this information will assist the Joint Certification Office in processing your DD Form 2345. Additionally, once JCP certified, this information will assist in identifying, for the controlling DOD office, what technical data is accessible under your JCP Certification.

Registration with the Department of State

Should you need further clarification regarding registration with the U. S. Department of State, their contact information is below:

URL: <http://www.pmddtc.state.gov/registration/wmr.html>

UNITED STATES MUNITION LIST:

(http://www.pmddtc.state.gov/regulations_laws/documents/official_itar/ITAR_Part_121.pdf) .

PHONE: 202-663-1282

EMAIL: DDTCResponseTeam@state.gov

HOURS: 8:15 a.m. top 5:00 p.m.

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SUBMITTING THE DD FORM 2345

- E-Mail the original signed, completed form and your company's supporting documentation to: JCP-ADMIN@dla.mil

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Steps for emailing:

1. Complete the attached, fillable DD Form 2345. (Blocks 1 – Block 6B)
2. Save the form and print it.
3. Hand sign and Date the DD Form 2345. (Blocks 6C and 6D)
4. Scan the form.
5. Save form as a .pdf.
6. Attach the DD Form 2345 .pdf to an email addressed to JCP-ADMIN@dla.mil.
 - If you are required to send supporting documentation, attach to the same email.

NOTE:

For any and all questions, concerns or issues, please contact the Joint Certification Program Office (JCO) at: JCP-HELPDESK@DLA.MIL

ONCE APPROVED

- The person listed as the Data Custodian will receive the electronic copy of your form signed by the Canadian and U.S. representatives and bearing your certification number and a copy of the Approval Letter.
- Unless specifically annotated, [certification is typically valid for a period of five years.](#)

Respectfully,

U.S. / Canada Joint Certification Program Office

Defense Logistics Agency

Logistics Information Services-J34

HDI Federal Center 74 Washington Ave North Battle Creek, MI USA 49037-3084

Web: <http://www.dla.mil/HQ/InformationOperations/Offers/Products/LogisticsApplications/JCP.aspx>

******IMPORTANT******

******** Please use JCP-HELPDESK@dla.mil for all questions, concerns, or issues you have concerning JCP.

******** Please use JCP-ADMIN@dla.mil for DD Form 2345 submissions and revisions.